

Abdul Kayyum v. State of U.P.

Allahabad High Court · Division Bench · 13 July 2022 · Writ-C No. 19139 of 2022 · **Writ disposed; clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

Without expressing any opinion on merits, a writ seeking quashing of a demand notice and mandamus for electricity connection was disposed of with liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, a time-bound decision after hearing, and a stay of coercive action pending that process.

FACTUAL SUMMARY

Abdul Kayyum, consumer of connection no. 085251 (account no. 34145237) at house no. 130/252, Bagahi, Kidwai Nagar, Kanpur Nagar, petitioned the Allahabad High Court to quash a demand notice dated 29 May 2022 issued by respondent no. 5, to mandamus supply of electricity, and to decide his application dated 20 June 2022. Counsel for the Power Distribution Corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 5 within four weeks; if submitted in time, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined to examine the demand or the connection prayer on the writ and relegated the consumer to a clause 6.5 objection, with a time-bound decision and interim protection from coercive action. ¶ 1

6.5-representation-as-appropriate-remedy On the discom's statement that an objection to the demand would be decided in a time-bound manner, the Court treated a para 6.5 representation before respondent no. 5 as the appropriate remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 29 MAY 2022, THE PRAYER FOR SUPPLY OF CONNECTION NO. 085251, AND THE APPLICATION DATED 20 JUNE 2022

The Court expressly declined to express any opinion on merits. ¶ 1